

Coal Mines Labour Welfare Fund Act, 1947

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Union of India - Act

Coal Mines Labour Welfare Fund Act, 1947

UNION OF INDIA

India

Coal Mines Labour Welfare Fund Act, 1947

Act 32 of 1947

Published in Gazette of India on 18 April 1947

Not commenced

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[Repealed by

Coal Mines Labour Welfare Fund (Repeal) Act, 1986 (Act 27 of 1986)

on

23 May 1986

]

An Act to make better provision for financing measure for promoting the welfare of labour employed in the coal-mining industry

Whereas it is expedient to make better provision for financing measures for promoting the welfare of labour employed in the coal-mining industry, including housing and the provision of dispensary services, and for such purposes to impose a cease and constitute a fund;

It is hereby enacted as follows:?

1.

Short title, extent and commencement.?

(1)

This Act may be called the Coal Mines Labour Welfare Fund Act, 1947.

(2)

It extends to the whole of India.

(3)

It shall come into force on such date as the Central Government may, by notification in the official Gazette, appoint.

2.

Interpretations.?

In this Act, unless there is anything repugnant in the subject or context:-

(a)

?Advisory Committee? means the Advisory Committee constituted under section 8;

(b)

?Commissioner? means the Coal Mines Labour Welfare Commissioner, appointed under section 9, and includes any of his functions under this Act;

(c)

?Housing Board? means the Coal Mines Labour Housing Board constituted under section 6;

(d)

?Housing Board? means the Coal Miners Labour Housing and General Welfare Fund constituted under section 4; and

(e)

?Prescribed? means prescribed by rules made under this Act.

3.

Imposition and collection of duty.?

(1)

There shall be levied and collected as a cess for the purposes of this Act a duty of excise on all coal and coke dispatched from collieries in India at such a rate not less than four annas and not more than eight annas per ton, as may from time to time be fixed by the Central Government by notification in the official Gazette:

Provided that the Central Government may, by notification in the official Gazette, exempt from liability to the duty and special class or classes of coal or coke.

(2)

The duty levied under sub-section (1) shall subject to and in accordance with rules made in this behalf, be collected by such agencies and in such manner as may be prescribed.

4.

Mines Labour Housing & General Welfare Fund.?

(1)

The proceeds of the duty levied under section 3 shall be paid by the collecting agencies into the State Bank of India or into any Government treasury or sub-treasury in the prescribed manner, and shall be credited to a fund to be called the Coal Mines Labour Housing and General Welfare Fund, and apportioned under two separate accounts to be called the housing account of the Fund and the general welfare account of the Fund, in such manner as the Central Government from time to time may by notification in the official Gazette, determine:

Provided that there shall at times be credited?

(a)

to the housing account of the Fund, not less than one anna and four pies, and

(b)

to the general welfare account of the Fund not more than four annas and eight pies,?
out of the duty collected under this Act on every ton of coal or coke.

(2)

There shall also be credited to the housing account of the Fund?

(a)

any grant made there by the Central Government;

(b)
rents, if any, realized from housing accommodation constructed out of such account; and

(c)
any other moneys received by the Housing Board.

5.
Expenditure from the fund.?

(1)
The cost of administering the Fund and the salaries and allowances, if any, of the Commissioner, Inspectors, Welfare Officers and other staff appointed to supervise or carry out measures financed from the fund shall be defrayed out of the Fund, and shall be apportioned between and debited in the housing account and the general welfare account in such manner as may be prescribed.

(2)
The Central Government may out of the general welfare account of the fund pay annually grants-in-aid to such of the colliery owners as maintain to the satisfaction of the Commissioner dispensary services of the prescribed standard for the benefit of labour employed in their collieries, so however that the amount payable as grant in aid to the owner of a colliery shall not exceed-

(i)
amount of the duty at the rate of eight pies per ton recovered in respect of coal or coke dispatched from the colliery less the proportionate cost of recovery; or

(ii)
the amount spent by the owner in the maintenance of the dispensary service, as determined by the Commissioner, whichever is less:

Provided that no grant-in-aid shall be payable in respect of any dispensary service maintained by the owner of the colliery if the amount expended therein, as determined by the Commissioner, is less than eighty rupees per mensem.

(3)
The balance of the moneys in the general welfare account of the Fund shall be applied by the Central Government to meet expenditure incurred in connection with measures which are in the opinion of the Central Government necessary or expedient to promote the welfare of the labour employed in the coal-mining industry.

(4)
Without prejudice to the generality of sub-section (3), the moneys in the general welfare account of the Fund may be utilized to defray-

(a)
the cost of measures for the benefit of labour employed in the coal mining industry directed towards-

(i)
the improvement of public health and sanitation, the prevention of disease, the provision of medical facilities and the improvement of existing medical facilities, including the provisions and maintenance of dispensary service in collieries the owners of which do not receive grants-in-aid under sub-section (2);

(ii)
the provision of water-supplies and facilities for washing and the improvement of existing supplies and facilities;

(iii)
the provisions and improvement of educational facilities;

(iv)
the improvement of standards of living, including nutrition, amelioration of social conditions, and the provision of recreational facilities; and

(v)
the provision of transport to and from work.

(b)
the grant to a Provincial Government, a local authority or the owner, agent or manager of a coal mine of money in aid of any scheme approved by the Central Government for any purpose for which moneys in the general welfare account of the Fund may be utilized;

(c)

the allowances, if any, of the members of the Advisory Committee and the amounts debitable to the account under subsection (1); and

(d)

any other expenditure which the Central Government directs to be defrayed out of the moneys in the general welfare account of the Fund.

(5)

The Central Government shall publish annually in the official Gazette an estimate of receipts into and expenditure from the general welfare account of the Fund together with a statement of the accounts and report of the activities financed during the previous year from general welfare account of the Fund, and shall forward copies of such statement and report to the members of the Advisory Committee.

(6)

The moneys in the housing account of the Fund shall be applied by the Housing Board to defray-

(a)

the cost of erecting, maintaining and repairing housing accommodation for labour employed in the coal-mining industry and of providing services and facilities connected therewith;

(b)

the cost of preparing schemes, and of acquiring any land required, for the purposes referred to in clause (a);

(c)

the grant, subject to the previous approval of the Central Government, to a Provincial Government, a local authority or the owner, agent or manager of a coal mine of money in aid of any scheme approved by the Housing Board for the purposes referred to in clauses (a) and (b);

(d)

the allowances, if any, of the members of the Housing Board and the amounts debitable to the accounts under sub-section (1); and

(e)

any other expenditure which the Central Government directs to be defrayed out of the moneys in the housing account of the Fund.

(7)

In May of each year the Housing Board shall submit to the Central Government a statement in the prescribed form of the estimated receipts into and expenditure from the housing account of the Fund for the ensuing financial year together with a report of the activities financed during the previous year from the housing account of the Fund, and may at any time during the ensuing financial year submit to the Central Government a supplementary statement and shall forward copies of such statements and report to the members of the Advisory Board.

(8)

The Housing Board shall comply with such directions as the Central Government may from time to time think fit to give in respect of expenditure from the housing account of the Fund.

(9)

The Housing Board may invest moneys in the housing account of the Fund in securities of the Government of India, or, with the previous approval of the Central Government in other securities.

(10)

The Housing Board shall cause to be maintained such books of accounts as may be prescribed and shall prepare in the prescribed manner an annual statement of the accounts.

(11)

The Housing Board shall cause the housing account of the Fund to be audited annually by a person qualified under the provisions of section 144 of the Companies Act, 1913, to act as an auditor of companies, and as soon as the said account has been audited the Housing Board shall forward copies thereof together with copies of the report of the auditor thereon to the Central Government and to members of the Advisory Committee.

(12)

The Central Government shall have power to decide whether any particular expenditure is or is not debitable to the housing account, or the general welfare account of the Fund, and its decision shall be final.

(13)

Before incurring any expenditure from the Fund other than expenditure of a routine or urgent nature, the Central Government or, as the case may be, the Housing Board shall consult the Advisory Committee.

6.

Coal Mines Labour Housing Board.?

(1)

The Central Government shall, by notification in the official Gazette, constitute a Coal Mines Labour Housing Board to prepare and carry out, subject to the previous approval of the Central Government, schemes financed from the housing account of the Fund for the provision of suitable housing accommodation for labour employed in coal mining industry, and to carry out other functions of the Housing Board under this Act.

(2)

The Commissioner shall be the Chairman of the Housing Board, and the other members thereof shall be appointed by the Central Government and shall be of such number and chosen in such manner as may be prescribed.

(3)

The Housing Board shall be a body corporate by the name of the Coal Mines Labour Housing Board, having perpetual succession and a common seal, with power to acquire property both movable and immovable, and shall by the said name sue and be sued.

(4)

No act done by the Housing Board shall be called in question on the ground merely of the existence of any vacancy in, or defect, in the constitution of the Housing Board.

7.

Provisions regarding housing accommodation.?

(1)

The occupation by any person of any housing accommodation provided out of the housing account of the Fund shall be subject to compliance by that person and at all times with such conditions relating to his occupation of such accommodation as may be prescribed.

(2)

Before any person occupies any such accommodation he shall be furnished with a copy of the conditions referred to in sub-section (1), and if he so desire the said conditions shall be read over to him in a language which he understands, and the Housing Board shall cause to be published in such manner as it thinks best adapted for informing the persons concerned any changes which may from time to time be made in the said conditions.

(3)

If, in the opinion of Housing Board, any person in occupation of any such accommodation fails or ceases to comply with any of the conditions referred to in sub-section (1), it may, by notice in writing, require him to vacate the accommodation on or before such date, not being less than thirty days after the service of the notice, as may be specified in the notice; and the occupation of such accommodation by such person or any dependent of his after the date so specified shall be unlawful, and such person or dependent may be evicted accordingly by due process of law from such accommodation.

(4)

There shall be payable in respect of the occupation of any such accommodation as aforesaid rent at such rate as may be prescribed:

Provided that the Housing Board may remit, subject to compliance at all times with the conditions referred to in sub-section (1), either the whole or any part of the prescribed rent:

Provided further that where in the case of any person who is by virtue of a remission under the first proviso paying either no rent or a reduced rent, the Housing Board has reason to believe that such person has contravened any of the said conditions, it may by notice in writing require such person to pay with effect on and after the expiry of seven days from the service of the notice, rent for the accommodation occupies by him and the full prescribed rate.

(5)

All rent payable in respect of the occupation of such accommodation as aforesaid, whether at the full prescribed rate or at a lesser rate, shall be recoverable as an arrear of land revenue.

8.

Advisory Committee.?

(1)

The Central Government shall, by notification in the official Gazette, constitute an Advisory Committee to advise on matter on which the Central Government or the Housing Board is required by this Act to consult the Committee and on any other matters arising out of the administration of this Act, which the Central Government may refer to it for advise.

(2)

The members of the Advisory Committee shall be appointed by the Central Government and shall be of such number and chosen in such manner as may be prescribed:

Provided that the Board shall include an equal number of members representing Government the owners of coal mines and workmen employed in the coal mining industry, and that at least one member of the Advisory Committee shall be a woman.

(3)

The Chairman of the Advisory Committee shall be an officer of the Central Government appointed by the Central Government.

9.

Appointment and powers of officers.?

(1)

The Central Government may appoint a Coal Mines Labour Welfare Commissioner and such number of Inspectors, Welfare Officers and other staff as it thinks fit to supervise and carry out measures financed from the Fund.

(2)

Any person so appointed shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code.

(3)

The Commissioner or any Inspector or Welfare Officer may, with such assistance, if any, as he thinks fit, enter at all reasonable times any place which he considers it necessary to enter for the purpose of supervising or carrying out the measures financed from the Fund, and may do therein anything necessary for the proper discharge of his duties.

10.

Power to make rules.?

(1)

The Central Government may, by notification in the official Gazette, and subject to the condition of previous publication, make rules to carry into effect the purposes of this Act.

(2)

Without prejudice to the generality of the foregoing power, rules made under this section may provide for: ?

(i)

the manner in which the duty levied under sub-section (1) of section 3 shall be collected, the person who shall be liable to make the payments, the making of refunds, remissions and recoveries, the deduction by collecting agencies of a percentage of the realizations to cover the cost of collection, and the procedure to be followed in remitting the proceeds to the State Bank of India or to any Government treasury or sub-treasury;

(ii)

the composition of the Housing Board, the manner in which its members shall be chosen, the term of office of its members, the allowances if any payable to them and the manner in which the Housing Board shall conduct its business, including the number of members necessary to form a quorum at a meeting thereof;

(iii)

the books of account to be maintained by the Housing Board, and the form of its financial estimates and statements of account;

(iv)

the composition of the Advisory Committee, the manner in which its members shall be chosen, the term of office of its members, the allowances, if any, payable to them and the manner in which the Advisory Committee shall conduct its business;

(v)

the apportionment between the housing account and the general welfare account of the Fund of the expenditure on the administration of the Fund and on the salaries and allowances of the Commissioner, Inspectors, Welfare Officers and other staff employed for the purposes of this Act;

(vi)

the standard of dispensary services to be provided by owners of collieries for the purposes of sub-section (2) of section 5 and the inspection and supervision of the dispensaries and other places at which such services are provided;

(vii)

the application by owners of collieries for grant-in-aid, the authority to whom and the manner in which such application shall be made and the particulars to be specified in such application;

(viii)

the manner in which dispensary services may be provided by the Central Government;

(ix)

the conditions governing the grant of money from the general welfare account of the Fund to a Provincial Government, a local authority or the owner, agent or manager of a coal mine;

(x)

the rate of rent for housing accommodation provided out of the housing account of the Fund;

(xi)

the conditions of service and the duties of Inspector, Welfare Officers and other staff appointed to supervise or carry out measures financed from the Fund;

(xii)

the duties and functions of the Commissioner;

(xiii)

the furnishing by owners, agents or managers of mines of statistical or other information, and the punishment by the fine not exceeding two hundred rupees on failure to comply with the requirements of any rules made under this clause;

(xiv)

any other matter which under this Act is to be or may be prescribed.

11.

Repeal of Ordinance VII of 1944.?

(1)

The Coal Mines Labour Welfare Fund Ordinance, 1944, is hereby repealed.

(2)

For the avoidance of doubts it is hereby declared that the provisions of section 6 of the General Clauses Act, 1897, shall apply to the repeal effected by this section.

(3)

Any balance remaining in the Fund constituent under the aforesaid Ordinance shall be apportioned between the housing account and the general welfare account of such Fund in such manner as the Central Government may determine.

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